

103	Alday v Orange Coast Title Company, 2024-01415025	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION The Court is inclined to continue the hearing on this MSJ; the question is for how long. Alday requests a continuance under CCP § 437c(h) Trial of this case was previously continued due to the pendency of a case in Los Angeles Superior Court, Alday v. Gonzalez, 22STCV28111, to avoid inconsistent verdicts. It appears that that case is scheduled for trial on 09/21/2026. Yet Alday’s counsel declares that he has agreed with counsel for Jose Gonzalez (the defendant in the other case, and the witness whose testimony is necessary to oppose the MSJ in this case) to depose Gonzalez on 09/17/2026. The Court expects the parties to be prepared to confirm these dates. Assuming that the deposition of Mr. Gonzalez can be completed on 09/21/2026, the Court will provide the parties with dates for supplemental opposition and reply papers, and a continued date for the hearing.
104	Barretto v. Rivian Automotive, 2025-01519084	DEMURRER TO CROSS-COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Cross-Defendant Universal Protection Service, LP dba Allied Universal Security Services (Universal) demurs to all four causes of action in Cross-Complainant Rivian Automotive, LLC’s (“Rivian”) Cross-Complaint (“XC”). The underlying Complaint in this action was filed by Leopoldo Barretto—an employee of Universal—who alleges he was injured in the course and scope of his employment when he slipped and fell at the premises owned and controlled by Rivian. (XC ¶¶5-6.) Barretto alleges that the premises were dangerous due to poor lighting and improper maintenance, which caused his injury. (XC ¶ 6.) Barretto did not name Universal as a defendant. Universal has submitted evidence that Barretto has initiated a workers compensation claim for his injury. (RJN, Exh. 1.) Rivian’s Cross-Complaint asserts causes of action against Universal for (1) contractual indemnity; (2)

		equitable indemnity; (3) contribution; and (4) declaratory relief. Labor Code section 3864 provides: “If an action as provided in this chapter [of the Workers’ Compensation Act] prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.” Labor Code section 3864 prohibits suits against employers for reimbursement and to enforce a hold-harmless provision, and applies to suits for equitable indemnity, apportionment of fault, indemnity, and declaratory relief. (State v. Superior Court (Glovsky) (1997) 60 Cal.App.4th 659, 664; see also Privette v. Superior Court (1993) 5 Cal.4th 689, 698 [noting that third parties are precluded from obtaining equitable indemnity from employers who provide compensation coverage].) Thus, the only potentially viable claim is Rivian’s cause of action for express indemnity. As pled in the Cross-Complaint, the relevant language is found in Section 11.1 of a Master Purchase Agreement between the parties, and provides: Supplier shall defend, indemnify, and hold harmless Company and Company's Affiliates and Authorized Service Recipients and their officers, directors, employees, agents, successors, and permitted assigns (each, a ‘Company Indemnitee’) from and against all Losses arising out of or resulting from any demands, claims, suits, actions, damages, or proceedings commenced or threatened by a third party (each, an ‘Action’) to the extent caused by: (a) bodily injury, death of any person, or damage to real or tangible, personal property to the extent caused by the Products, Supplier, or any Supplier Personnel, or in any way attributable to the negligent performance of Supplier; ... (d) the wrongful acts
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		or omissions of Supplier, any Supplier Personnel[.] (XC ¶ 7.) Here, the Cross-Complaint does not allege any facts that could constitute negligence or wrongful acts or omissions by Universal. To the contrary, the Cross-Complaint alleges that “Plaintiff has filed a premises liability claim against Rivian Automotive LLC, alleging that the exterior stairway at 40 Parker was dangerous due to poor lighting and improper maintenance, which caused his injury. Plaintiff’s Complaint alleges that Cross-Complainant owned and controlled the property at 40 Parker and that the premises were unsafe for invitees due to the conditions of the stairs.” (XC ¶ 6.) Thus, no facts have been pled which would give rise to liability on the part of Universal based on the Master Purchase Agreement. Accordingly, the demurrer is sustained as to the entirety of the Cross-Complaint with 20 days leave to amend. Universal’s unopposed request for judicial notice is granted. (See Evid. Code, § 452, subds. (d), (h); Lake v. Lakewood Chiropractic Center (1993) 20 Cal.App.4th 47, 53 [workers’ compensation records].) Moving party to give notice.
105	Carranza v. Corbin Reeves Construction, 2025-01520792	DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED WITH LEAVE TO AMEND Plaintiff Boris Carranza sued numerous defendants for injuries suffered on September 11, 2024. The extent of the factual information provided by Plaintiff in the form complaint is: “Defendants, and each of them, negligently owned, occupied, and/or controlled the property located at 1801 Bayadere Terrace, Corona Del Mar, CA 92625. Defendants were negligent in the manner in which they owned, maintained, managed, leased, and operated the